

26PR00176 Estate of Jeffrey Dwayne Collman

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-09-15

Motion: Petition for Preliminary Distribution

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Tentative Ruling: Estate of Jeffrey Dwayne Collman

Case Number

26PR00176

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 09/15/2026 - 09:00

Nature of Proceedings

Petition for Preliminary Distribution

Tentative Ruling

Probate Notes:

Appearances required.

After supplement containing further briefing, the following is noted for the Court at the hearing:

Petitioner is the surviving Registered Domestic Partner of an airline attendant that was on American Airlines flight 11 on September 11, 2001. That plane was the first to hit the Twin Towers buildings during the infamous 9/11 terrorist attack in 2001. Decedent's estate is in receipt of a distribution of over \$400,000 from the Justice for United States Victims of State Sponsored Terrorism Fund, which paid out the families of the 9/11 victims from seized assets of the Islamic Republic of Iran. The exact amount previously paid out of the fund is not stated, nor is the aggregate amount of attorney's fees previously paid

identified anywhere in the petition or supplement.

Petitioner requests preliminary distribution of the entire estate, and that his attorney's be paid statutory fees of \$12,838.20.

The plain language of the Justice for United States Victims of State Sponsored Terrorism Act (34 U.S.C. § 20144) appears to encompass all attorney's fees paid in relation to work performed to obtain distribution of proceeds from the fund, which logically includes probate distribution.

The cap on attorney's fees appears in the act as follows:

(f) Attorneys' fees and costs

(1) In general

No attorney representing a non-9/11 related victim of state sponsored terrorism shall charge, receive, or collect, and the Special Master shall not approve, any payment of fees and costs that in the aggregate exceeds 25 percent of any payment made under this section. After November 21, 2019, no attorney representing a 9/11 related victim of state sponsored terrorism shall charge, receive, or collect, and the Special Master shall not approve, any payment of fees and costs that in the aggregate exceeds 15 percent of any payment made under this section after November 21, 2019.

(2) Penalty

Any attorney who violates paragraph (1) shall be fined under Title 18, imprisoned for not more than 1 year, or both.

(34 U.S.C.A. § 20144(f) [emphasis added].)

Not only does the act contain language contemplating distribution of the funds to personal representatives of the deceased victims' estates (see e.g. subd. (d)), but Congress specifically required personal representatives to report funds obtained from "any other source than this Fund" in an effort to determine the appropriate amount of the award from the Fund:

As part of the procedures for United States persons to apply and establish eligibility for payment, the Special Master shall require applicants to provide the Special Master with information regarding compensation from any source other than this Fund that the claimant (or, in the case of a personal representative, the victim's beneficiaries) has received or is entitled or scheduled to receive as a result of the act of international terrorism that gave rise to a claimant's final judgment, including information identifying the amount, nature, and source of such compensation.

(34 USC §20144(b)(2)(B).) This shows Congress contemplated probate distribution as part of the aggregate contemplated in the 15% cap.

To be sure, Congress could have used language limiting the 15% attorney's fees cap to work performed only in obtaining an award from the fund. Instead, Congress used "no attorney," "any payment," and particularly limiting, "in the aggregate" as the verbiage outlining to whom the 15% cap applied to.

In response to this concern, Attorney for petitioner submitted only a blank form from the Fund's implementation materials. That form contains the following:

I hereby certify my compliance with the following:

No attorney representing a non-9/11-related victim of state sponsored terrorism shall charge, receive, or collect, and the Special Master shall not approve, any payment of fees and costs that in the aggregate exceeds 25 percent of any payment made under the Justice for United States Victims of State Sponsored Terrorism Act, as amended (the Act). No attorney representing a 9/11-related victim of state sponsored terrorism shall charge, receive, or collect, and the Special Master shall not approve, any payment of fees and costs that in the aggregate exceeds 15 percent of any payment made under the Act. I shall provide such information as the Special Master requires ensuring my compliance. An attorney who violates this limitation shall be fined under title 18, United States Code, imprisoned for not more than one (1) year, or both. See 34 U.S.C. § 20144(f).

(1st Sup., at exh. B.) Attorney for petitioner argues that this acknowledgment shows “[t]he statute thus regulates fees charged in connection with representation of the victim concerning payments made under the federal Fund program.” (Id. at ¶3.)

This argument is not persuasive, because the certification is merely a recitation of the fee cap language in the federal statute, and does not in anyway imply that the cap does not apply to future work performed to distribute the funds to the victims or their families. Such interpretation not only ignores the language in the statute cited above, but would also violate the public policy of fee caps: to protect victims.

Therefore, it does not appear the Court can award the requested attorney’s fees, because the amount requested may, in the aggregate, exceed 15% of the payments made from the Federal restitution fund at issue. The Supremacy Clause of the United States Constitution is violated if this Court does not honor that cap and pays the requested attorney’s fees without an analysis of the aggregate fees paid out over the course of the case.

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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